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Transcribed from HathiTrust, umn.31951d02280223t, 1952, ch. 198 (printed pp. 226-228), read in the browser on 1 October 2026. This is not the page the site serves: it refuses an automated request, so what is filed is the text layer the page carries, taken as it stands. Where the transcript and the printed page could differ the printed page governs; the annotation in paper/sources.bib says which passages were read against the page image.

Acts and Joint Resolutions of the General Assembly of Virginia, 1952, ch. 198 (printed pp. 226-228)

[seq 230, printed p. 226]

226 [VA., 1952 ACTS OF ASSEMBLY vided that it shall have complied with the provisions of §§ 6-98 and 6-99, with reference to the securing of such deposits. CHAPTER 197 An Act to amend and reenact §§ 55-89 and 55-90 of the Code of Virginia, relating to agreements for conditional sales or leases, or reservation of title or lien, with respect to railroad equipment. Approved March 5, 1952 [H 497] Be it enacted by the General Assembly of Virginia: 1. That §§ 55-89 and 55-90 of the Code of Virginia be amended and reenacted as follows: § 55-89. * * Agreements as to railroad equipment. No agreement for the sale or lease of locomotives, cars or other rolling stock * to be used in or about the operation of any railroad, operating as a public service corporation, which provides that title shall remain in the vendor or lessor until performance of some condition, shall be valid * as to creditors of the vendee or lessee who acquire a lien or as to purchasers from the vendee or lessee, for value, without notice, until and except from the time the agreement * is * filed in the office of the State Corporation Commission, and unless each locomotive, car or other piece of rolling stock be plainly and permanently marked with the name of the vendor or lessor, on both sides thereof, followed by the word "owner." Upon the satisfaction or discharge of any such agreement, the railroad shall promptly file with the Commission the instrument of satisfaction or discharge. The clerk of the Commission shall keep a proper index of such agreements and instruments. Such agreements shall not be subject to the requirements of § 55-88. § 55-90. Docketing * agreements for conditional sales or reservation of title or lien. - The clerk shall docket the writings mentioned in * § 55-88 by setting out the * particulars of the contract mentioned in § 55-88 in a well bound book, to be called the "Conditional Sales Book," and shall index the same thereon or in a separate general index book kept for that purpose, alphabetically, in the name of both the vendor and the vendee, for which service he may charge a fee of fifty cents. No tax shall be charged thereon. The clerk shall, after having docketed such contract, return the same to the party filing the same for docketing. 2. An emergency exists and this act is in force from its passage. CHAPTER 198 An Act to amend and reenact §§ 15-352 and 15-353 of the Code of Virginia, relating to appointment, powers and duties of certain county officials, and budgets in certain counties; and to amend the Code by adding sections numbered 15-352.2 and 15-355.1, relating to county managers and to certain referenda in counties adopting a certain form of county

organization and government. Approved March 6, 1952 Be it enacted by the General Assembly of Virginia: [S 174] 1. That §§ 15-352 and 15-353 of the Code of Virginia be amended and reenacted, and that the Code be amended by adding sections numbered 15-352.2 and 15-355.1, as follows:

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CH. 198] 227 ACTS OF ASSEMBLY § 15-352. The administrative and executive powers of the county, including the power of appointment of all officers and employees whose appointment or election is not otherwise provided by law, are vested in an official known as the county manager, who shall be appointed by the county board at its first meeting or as soon thereafter as practicable. He shall receive such compensation as shall be fixed by the board. The officers whose election by popular vote is provided for in section one hundred and ten of the Constitution and the trial justice or county judge, the school board and the superintendent of schools shall not be subject to appointment but shall be selected in the manner prescribed by law. The heads of all departments other than those hereinbefore referred to and excepted from the provisions of this section shall be selected by the county board; provided that if a majority of the qualified voters voting in the election required by § 15-355.1 vote in favor thereof, then the heads of the several county departments, other than those hereinbefore referred to and excepted from the provisions of this section, shall be appointed by the county manager. § 15-352.2. The term of office of such county manager shall expire on June thirtieth of each year after nineteen hundred fifty-two, but, except as hereinafter provided, he shall be notified at least sixty days before the expiration of his term if his services are not desired for the ensuing twelve months period. He shall receive such annual salary as the board may prescribe, payable in monthly installments from county funds. He shall devote his full time to the performance of the duties imposed on him by law, and the performance of such other duties as may be directed by the board. To perform his duties during his temporary absence or disability the manager may designate by letter filed with the clerk of the board a qualified administrative officer of the county to be acting manager. In the event of failure of the manager to make such designation, the county board may, by resolution, appoint an officer of the county to perform the duties of the manager until he shall return or his disability cease. The board may at any time remove the county manager for neglect of duty, malfeasance or misfeasance in office, or incompetency; provided, that if a majority of the qualified voters voting in the election required by § 15-355.1 vote in favor thereof, the county manager shall, after December thirty-first, nineteen hundred fifty-two, be appointed for an indefinite period and be subject to removal by the county board at any time, any other provision of law to the contrary notwithstanding. In case the board determines to remove the county manager so appointed, he shall be given, if he so requests, a written statement of the reasons alleged for the proposed removal and the right of a hearing thereon at a public meeting of the board prior to the date on which his final removal shall take effect, but pending and during such hearing the county board may suspend him from office, provided that the period of suspension shall be limited to thirty days. The action of the board in suspending or removing the county manager shall not be subject to review. § 15-353. In addition to such

other duties as are or may be prescribed by law or directed by the board, the county manager in counties having a population of five hundred or more per square mile shall each year on or before March fifteenth prepare and submit to the board * a tentative budget, prepared in accordance with the provisions of law in effect governing the preparation of the county budget and showing in detail the recommendations of the county manager for expenditures on each road and bridge or for other purposes. Prior to * Prior to May fifteenth, but not there- after, the board may alter, amend or change any item reported by the county manager, and shall set the rate for local levies of taxation on or

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228 [VA., 1952 ACTS OF ASSEMBLY before May fifteenth of each year. In the event of the failure of the board to act thereon, the tentative budget as prepared and submitted by the county manager shall be deemed the county budget and be in full force and effect, subject to the provisions of law as to the county budget. After the county budget has become effective, no changes shall be made in the allocations of funds as therein made, unless such change is recommended by the county manager and approved by the board, provided, that in no event shall any change of more than ten per centum be made in any al- location. The county manager shall be the executive and administrative of- ficer of the county in all matters relating to the public roads and bridges of the county, and the other public work and business of the county, ex- cept public schools, and shall have general supervision and charge of all construction and maintenance of the public roads, bridges and landings of the county, and all public works and business of the county, except public schools, and the purchase of all supplies, equipment and materials for the roads, bridges and landings and other public works and business of the county, and the employment of all superintendents, foremen and labor therefor. The county manager shall keep the board advised as to the financial condition of the county, and at each regular meeting of the board he shall present to the board an itemized statement of all expenditures made by him since his last report, and on or before July fifteenth of each year shall file with the clerk of the board an itemized statement showing the amount expended on each road, bridge or for other purposes for the year preced- ing, ending June thirtieth. *** § 15-355.1. In the year nineteen hundred fifty-two there may be in any county which has adopted the form of organization and government provided for in this article a referendum on the following questions: (1) "Shall the county manager be appointed for an indefinite term, subject to removal at any time by the county board?" (2) "Shall the heads of the county departments be appointed by the county manager?" The provisions of § 15-360.1 shall apply, and the election shall be conducted, the ballots marked, the returns canvassed, and the results cer- tified as provided in § 24-141 of the Code of Virginia. CHAPTER 199 An Act to authorize the Department of Welfare and Institutions to grant and convey all its right, title and interest in a certain parcel of land with improvements thereon. [S 180] Approved March 6, 1952 Be it enacted by the General Assembly of Virginia: 1. § 1. The Department of Welfare and Institutions, with the approval of the Governor in writing obtained, is authorized to grant and convey all its right, title and interest in a certain parcel of land, containing one hundred and forty acres, more or less, together with improvements thereon, known as

Convict Road Force Camp No. 10 and located in Court House Magisterial District, Floyd County. § 2. The conveyance of this property shall be for a consideration to be determined by the Department and the proceeds from such conveyance